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Case Number: 23PSCV03039 Hearing Date: July 30, 2026 Dept: H

Esparza, et al. v. American

Honda Motor Co., Inc., Case No. 23PSCV03039

ORDER ON MOTION

FOR ATTORNEY'S FEES

Plaintiffs Alejandra Esparza and

Eric Mota Cruz's Motion for Attorney's Fees, Costs and Expenses is GRANTED, to the extent that fees are awarded in the reduced amount of \$65,045.00 and costs are awarded in the amount of \$9,471.88, for a total award of \$74,516.88. The Court declines to award a multiplier.

Background

Plaintiffs Alejandra Esparza and Eric Mota Cruz

(together, "Plaintiffs") allege as follows:

On November 27, 2022, Plaintiffs purchased a 2021

Honda Civic ("subject

vehicle"). The subject

vehicle has since exhibited numerous defects and nonconformities to warranty, including, but not limited to suspension system and engine defects, which have not been repaired within a reasonable number of attempts.

On

October 2, 2023, Plaintiffs filed a complaint, asserting causes of action

against American Honda Motor Co., Inc. ("Defendant") and Does 1-10 for: (1) Violation of Song-Beverly Act—Breach of Express Warranty, (2) Violation of Song-Beverly

Act—Breach of Implied Warranty, and (3) Violation of The Song-Beverly Act Section 1793.2(b).

On

February 13, 2026, Plaintiffs filed a conditional “Notice of Settlement of Entire Case.”

An

Order to Show Cause Re: Dismissal (Settlement) is set for July 30, 2026.

Legal Standard

“Any buyer of consumer goods who is damaged by a failure to comply with any obligation under this chapter or under an implied or express warranty or service contract may bring an action for the recovery of damages and other legal and equitable relief.” (Civ. Code § 1794, subd. (a).)

“If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code § 1794, subd. (d).)

Discussion

Plaintiffs

move the Court, pursuant to Civil Code section 1794, for an award of attorney’s fees and costs in their favor and against Defendant in the amount of \$159,051.88 (i.e., \$99,720.00 in fees, plus 0.5 multiplier of \$49,860.00, plus \$9,471.88 in costs and expenses).

Evidentiary

Objections

The

Court rules on Plaintiffs’ evidentiary objections as follows: Sustain as to Nos. 1-5. The Court declines to consider Defendant’s 9-page “Objections to Plaintiffs’ Billing Entries” on the basis that it constitutes an improper attempt to circumvent page limitations espoused in California Rules of Court

rule 3.1113, subdivisions (d) and (e) (i.e., “no opening or responding memorandum may exceed 15 pages” absent permission to file a longer memorandum).

Merits

1. Entitlement to Fees

Defendant

does not oppose the motion as to the issue of entitlement to fees.

It is

undisputed, then, that Plaintiffs are the prevailing party and, as such, is entitled to an award of attorneys' fees pursuant to Civil Code section 1794, subdivision (d) and the parties' settlement.

2. Reasonableness of Fees

The Court

turns to the issue of reasonableness of the fees sought. “[T]rial courts have broad discretion in determining the amount of a reasonable attorney's fee award. This determination is necessarily ad hoc and must be resolved on the particular circumstances of each case.” (Meister v. Regents of University of California (1998) 67 Cal.App.4th 437, 452.) “Trial judges are entrusted with this discretionary determination because they are in the best position to assess the value of the professional services rendered in their courts.” (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.)

“[O]nce

a party has established he or she is entitled to fees, the lodestar method is generally presumed to be the starting point in analyzing the appropriate amount of attorney fees. Under this method, a court first calculates the number of hours reasonably spent multiplied by the reasonable hourly rate for each billing professional, and then may adjust the amount based on various relevant factors to ensure the fee reflects the fair market value [of the attorney services] for the particular action. (K.I.

v. Wagner (2014) 225 Cal.App.4th 1412, 1425 [quotations and citations omitted].)

a. Reasonableness of Hourly Rates

“In determining hourly rates, the court must look to the prevailing market rates in the relevant community. The rates of comparable attorneys in the forum district are usually used. In making its calculation, the court should also consider the experience, skill, and reputation of the attorney requesting fees. The court may rely on its own knowledge and familiarity with the legal market in setting a reasonable hourly rate.” (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009 [internal quotations and citations omitted].)

The hourly rates in this matter are set forth as follows:

Sepehr Daghighian (“Daghighian”), Partner—\$625.00

Michael Rosenstein (“Rosenstein”), Partner—\$700.00

Brian T. Shippen-Murray (“Shippen-Murray”), Senior Associate—\$550.00

Alastair Frederick Hamblin (“Hamblin”), attorney – \$550.00/hour

Mitchel A. Brim (“Brim”), attorney—\$550.00

Miguel A. Ortiz (“Ortiz”), attorney—\$525.00

Kristina Kousherian (“Kousherian”), attorney—\$375.00

Defendant

asserts that the hourly rates are excessive and should be reduced to \$400.00/hour for Daghighian and Rosenstein, \$350.00/hour for Shippen-Murray, and to \$300.00 for Hamblin, Brim, Ortiz and Kousherian.

The

Court determines that a reduction in the above hourly rates is warranted under the circumstances. This is a straightforward lemon law case, with no cited complexities. Based on the Court’s own experience and knowledge, as well as on

the experience and qualifications of counsel as set forth in Daghighian's declaration, the Court finds that the above hourly rates should be reduced to \$450.00 for Rosenstein, \$425.00 for Daghighian, \$375.00 for Shippen-Murray, Hamblin, Brim, and Ortiz and \$300.00 for Kousherian.

b. Reasonableness of Time Incurred

"[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 564.)

That said, "[a] fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether." (Serrano v. Unruh (1982) 36 Cal.3d 621, 635.) The court may "make across-the-board percentage cuts either in the number of hours claimed or in the final lodestar figure" in consumer law cases "when a voluminous fee application is made." (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 41 [quotations and citation omitted].)

The billing records attached as Exhibit A to Daghighian's declaration and the information set forth in Paragraphs 7-13 of said declaration reflect that the above attorneys and legal assistant expended the following time on this matter: (1) Daghighian: 21.6 hours; (2) Rosenstein: 13.7 hours; (3) Shippen-Murray: 35.2 hours; (4) Hamblin: 3.4 hours; (5) Brim: 92.6 hours; (6) Ortiz: 5.3 hours; and (7) Kousherian: 4.5 hours. At the outset, then, after application of the above reduced hourly rates, the Court will reduce the amount of attorney's fees sought under the "lodestar" method from the requested \$99,720.00 to \$66,532.50. [FN]

Defendant

asserts that certain billing entries are excessive, duplicative, or blocked billed, but fails to actually identify any specific entries in the body of its opposition,

The

Court declines to reduce these hours.

The

Court will, however, reduce the approximate 7.5 hours Plaintiffs' counsel seeks in connection with reviewing the opposition, preparing the reply brief and attending the hearing on the instant motion (Daghighian Decl., ¶ 7) to 4 hours, which further reduces overall fees from \$66,532.50 to \$65,045.00.

c. Multiplier

Plaintiffs' counsel asserts that

the firm should be awarded a 0.5 multiplier. "[T]he lodestar. . . may be adjusted by the court based on factors including, . . . (1) the novelty and difficult of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. The purpose of such adjustment is to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1131-1132.)

The Court declines to award a

multiplier under the circumstances presented here.

3. Costs

Plaintiffs seek costs of \$9,471.88.

Defendant asserts that Plaintiffs did not provide

any evidence of their claimed costs. Plaintiffs, however, provide an itemized list of each of these costs on Pages 17-19 of Exhibit A to Daghighian's declaration.

The Court will award costs in the amount requested.

Conclusion

The

motion is granted, to the extent that fees are awarded in the reduced amount of \$65,045.00

and costs are awarded in the amount of \$9,471.88, for a total award of \$74,516.88.

The Court declines to award a multiplier.

[FN] The Court calculated the \$66,532.50.50

by adding \$6,165.00 (i.e., \$450.00/hour (x) 13.7 hours) for Rosenstein, plus \$9,180.00

(i.e., \$425.00/hour (x) 21.6 hours) for Daghighian, plus \$13,200.00 (i.e.,

\$375.00/hour (x) 35.2 hours) for Shippen-Murray, plus \$1,275.00 (i.e.,

\$375.00/hour (x) 3.4 hours) for Hamblin, plus \$34,725.00 (i.e., \$375.00/hour

(x) 92.6 hours) for Brim, plus \$1,987.50 (i.e., \$375.00/hour (x) 5.3 hours) for

Ortiz, plus \$1,350.00 (i.e., \$300.00/hour (x) 4.5 hours) for Koussherian.